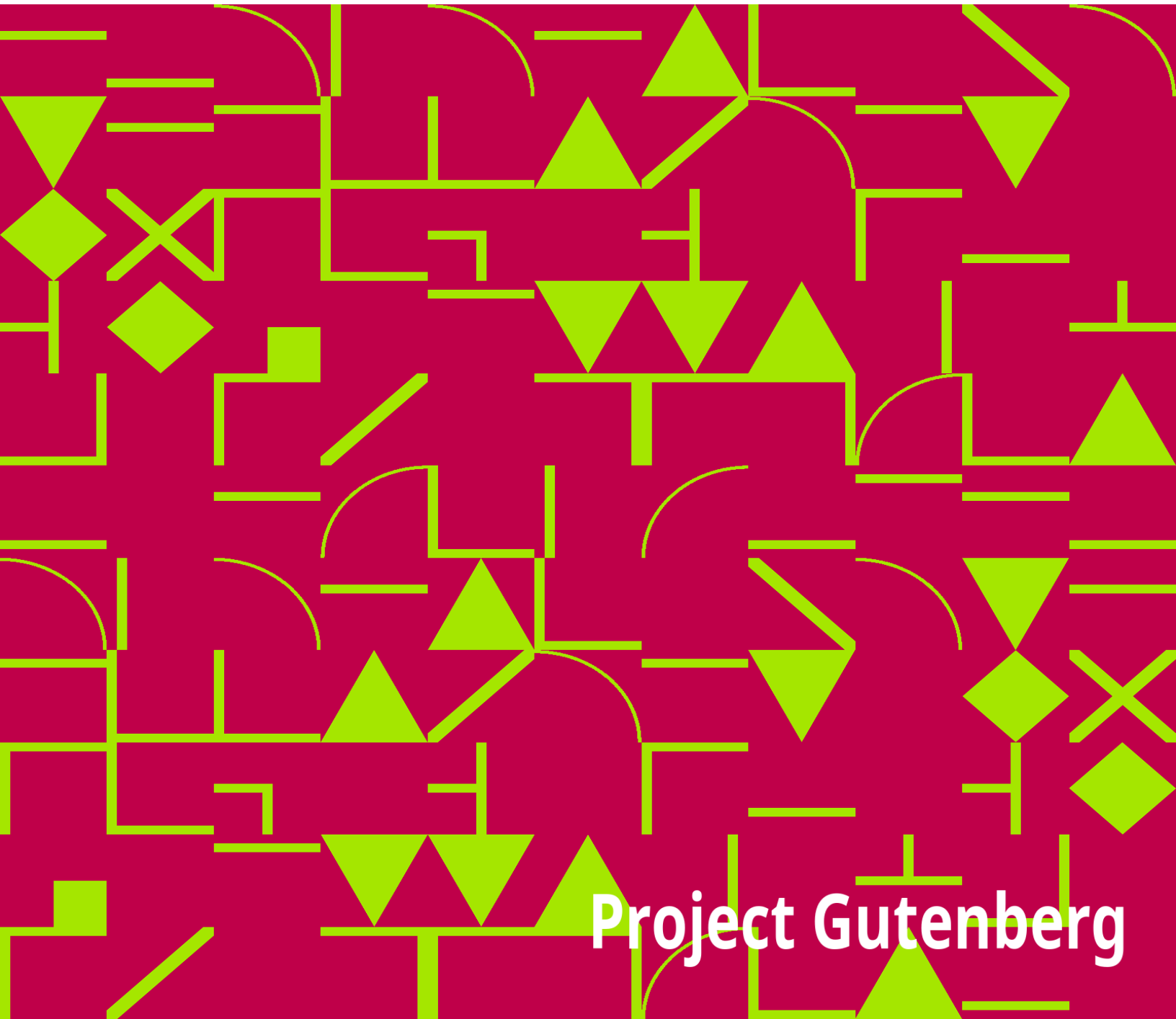


Critical Miscellanies (Vol. 3 of 3), Essay 1: On Popular Culture

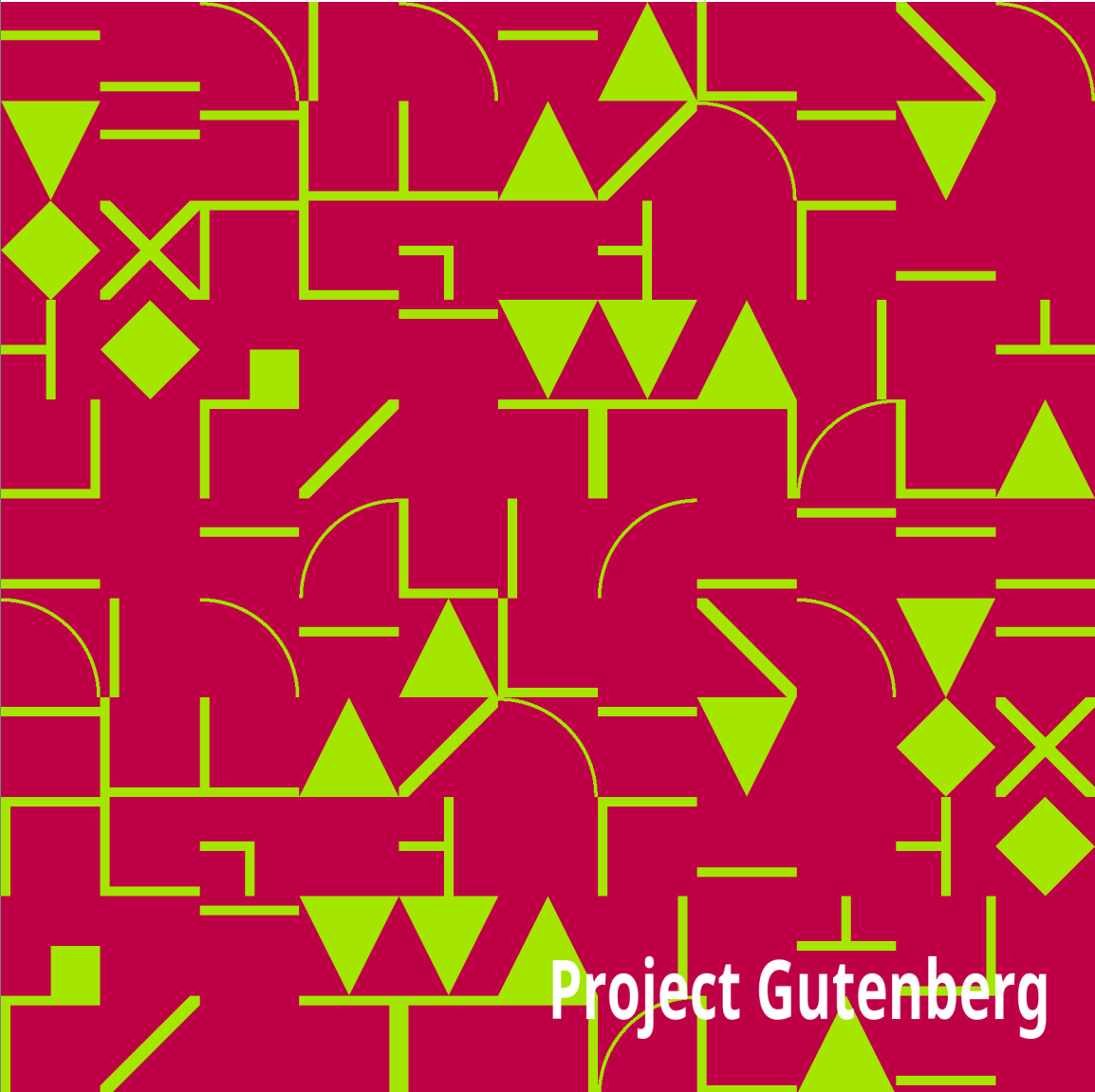
John Morley



Project Gutenberg

Critical Miscellanies (Vol. 3 of 3), Essay 1: On Popular Culture

John Morley

An abstract geometric pattern consisting of various shapes like triangles, squares, and lines in shades of red and orange, creating a complex, interlocking design.

Project Gutenberg

The Project Gutenberg eBook of Critical Miscellanies (Vol. 3 of 3), Essay 1: On Popular Culture

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Critical Miscellanies (Vol. 3 of 3), Essay 1: On Popular Culture

Author: John Morley

Release date: June 8, 2009 [eBook #29076]

Most recently updated: January 5, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/29076

Credits: Produced by Paul Murray, Stephanie Eason and the Online Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK CRITICAL
MISCELLANIES (VOL. 3 OF 3), ESSAY 1: ON POPULAR CULTURE

CRITICAL

MISCELLANIES

BY

JOHN MORLEY

VOL. III.

Essay 1: On Popular Culture

London

MACMILLAN AND CO., LIMITED

NEW YORK: THE MACMILLAN COMPANY

1904

ON POPULAR CULTURE

	PAGE
Introduction	1
Importance of provincial centres	2
Report of the Midland Institute	4
Success of the French classes	5
Less success of English history	6
Value of a short comprehensive course	8
Dr. Arnold's saying about history 'traced backwards'	9
Value of a short course of general history	10
Value of a sound notion of Evidence	16
Text-books of scientific logic not adequate for popular objects	21
A new instrument suggested	21
An incidental advantage of it	23
General knowledge not necessarily superficial	25
Popular culture and academic organisation	25
Some of the great commonplaces of study	29
Conclusion	34

ON POPULAR CULTURE

**AN ADDRESS DELIVERED AT THE TOWN HALL,
BIRMINGHAM (OCTOBER 5, 1876), BY THE
WRITER, AS PRESIDENT OF THE MIDLAND
INSTITUTE.**

The proceedings which have now been brought satisfactorily to an end are of a kind which nobody who has sensibility as well as sense can take a part in without some emotion. An illustrious French philosopher who happened to be an examiner of candidates for admission to the Polytechnic School, once confessed that, when a youth came before him eager to do his best, competently taught, and of an apt intelligence, he needed all his self-control to press back the tears from his eyes. Well, when we think how much industry, patience, and intelligent discipline; how many hard hours of self-denying toil; how many temptations to worthless pleasures resisted; how much steadfast feeling for things that are honest and true and of good report—are all represented by the young men and young women to whom I have had the honour of giving your prizes to-night, we must all feel our hearts warmed and gladdened in generous sympathy with so much excellence, so many good hopes, and so honourable a display of those qualities which make life better worth having for ourselves, and are so likely to make the world better worth living in for those who are to come after us.

If a prize-giving is always an occasion of lively satisfaction, my own satisfaction is all the greater at this moment, because your Institute, which is doing such good work in the world, and is in every respect so prosperous and so flourishing, is the creation of the people of your own district, without subsidy and without direction either from London, or from Oxford, or from Cambridge, or from any other centre whatever. Nobody in this town at any rate needs any argument of mine to persuade him that we can only be sure of advancing all kinds of knowledge, and developing our national life in all its plenitude and variety, on condition of multiplying these local centres both of secondary and higher education, and encouraging each of them to

fight its own battle, and do its work in its own way. For my own part I look with the utmost dismay at the concentration, not only of population, but of the treasures of instruction, in our vast city on the banks of the Thames. At Birmingham, as I am informed, one has not far to look for an example of this. One of the branches of your multifarious trades in this town is the manufacture of jewellery. Some of it is said commonly to be wanting in taste, elegance, skill; though some of it also—if I am not misinformed—is good enough to be passed off at Rome and at Paris, even to connoisseurs, as of Roman or French production. Now the nation possesses a most superb collection of all that is excellent and beautiful in jewellers' work. When I say that the nation possesses it, I mean that London possesses it. The University of Oxford, by the way, has also purchased a portion, but that is not at present accessible. If one of your craftsmen in that kind wants to profit by these admirable models, he must go to London. What happens is that he goes to the capital and stays there. Its superficial attractions are too strong for him. You lose a clever workman and a citizen, and he adds one more atom to that huge, overgrown, and unwieldy community. Now, why, in the name of common sense, should not a portion of the Castellani collection pass six months of the year in Birmingham, the very place of all others where it is most likely to be of real service, and to make an effective mark on the national taste?[1]

To pass on to the more general remarks which you are accustomed to expect from the President of the Institute on this occasion. When I consulted one of your townsmen as to the subject which he thought would be most useful and most interesting to you, he said: 'Pray talk about anything you please, if it is only not Education.' There is a saying that there are two kinds of foolish people in the world, those who give advice, and those who do not take it. My friend and I in this matter represent these two interesting divisions of the race, for in spite of what he said, it is upon Education after all that I propose to offer you some short observations. You will believe it no affectation on my part, when I say that I shall do so with the sincerest willingness to be corrected by those of wider practical experience in teaching. I am well aware, too, that I have very little that is new to say, but education is one of those matters on which much that has already been said will long bear saying over and over again.

I have been looking through the Report of your classes, and two things have rather struck me, which I will mention. One of them is the very large attendance in the French classes. This appears a singularly satisfactory thing, because you could scarcely do a hard-working man of whatever class a greater service than to give him easy access to French literature. Montesquieu used to say that he had never known a pain or a distress which he could not soothe by half an hour of a good book; and perhaps it is no more of an exaggeration to say that a man who can read French with comfort need never have a dull hour. Our own literature has assuredly many a kingly name. In boundless riches and infinite imaginative variety, there is no rival to Shakespeare in the world; in energy and height and majesty Milton and Burke have no masters. But besides its great men of this loftier sort, France has a long list of authors who have produced a literature whose chief mark is its agreeableness. As has been so often said, the genius of the French language is its clearness, firmness, and order; to this clearness certain circumstances in the history of French society have added the delightful qualities of liveliness in union with urbanity. Now as one of the most important parts of popular education is to put people in the way of amusing and refreshing themselves in a rational rather than an irrational manner, it is a great gain to have given them the key to the most amusing and refreshing set of books in the world.

And here, perhaps, I may be permitted to remark that it seems a pity that Racine is so constantly used as a school-book, instead of some of the moderns who are nearer to ourselves in ideas and manners. Racine is a great and admirable writer; but what you want for ordinary readers who have not much time, and whose faculties of attention are already largely exhausted by the more important industry of the day, is a book which brings literature more close to actual life than such a poet as Racine does. This is exactly one of the gifts and charms of modern French. To put what I mean very shortly, I would say, by way of illustration, that a man who could read the essays of Ste. Beuve with moderate comfort would have in his hands—of course I am now speaking of the active and busy part of the world, not of bookmen and students—would, I say, have in his hands one of the very best instruments that I can think of; such work is exquisite and instructive in itself, it is a model of gracious writing, it is full of ideas, it breathes the happiest moods over us, and it is the most suggestive of guides, for those who have the

capacity of extensive interests, to all the greater spheres of thought and history.

This word brings me back to the second fact that has struck me in your Report, and it is this. The subject of English history has apparently so little popularity, that the class is as near being a failure as anything connected with the Midland Institute can be. On the whole, whatever may be the ability and the zeal of the teacher, this is in my humble judgment neither very surprising nor particularly mortifying, if we think what history in the established conception of it means. How are we to expect workmen to make their way through constitutional antiquities, through the labyrinthine shifts of party intrigue at home, and through the entanglements of intricate diplomacy abroad—'shallow village tales,' as Emerson calls them? These studies are fit enough for professed students of the special subject, but such exploration is for the ordinary run of men and women impossible, and I do not know that it would lead them into very fruitful lands even if it were easy. You know what the great Duke of Marlborough said: that he had learnt all the history he ever knew out of Shakespeare's historical plays. I have long thought that if we persuaded those classes who have to fight their own little Battles of Blenheim for bread every day, to make such a beginning of history as is furnished by Shakespeare's plays and Scott's novels, we should have done more to imbue them with a real interest in the past of mankind, than if we had taken them through a course of Hume and Smollett, or Hallam on the English Constitution, or even the dazzling Macaulay. What I for one should like to see in such an institution as this, would be an attempt to compress the whole history of England into a dozen or fifteen lectures—lectures of course accompanied by catechetical instruction. I am not so extravagant as to dream that a short general course of this kind would be enough to go over so many of the details as it is desirable for men to know, but details in popular instruction, though not in study of the writer or the university professor, are only important after you have imparted the largest general truths. It is the general truths that stir a life-like curiosity as to the particulars which they are the means of lighting up. Now this short course would be quite enough to present in a bold outline—and it need not be a whit the less true and real for being both bold and rapid—the great chains of events and the decisive movements that have made of ourselves and our institutions what we are and what they are—the Teutonic beginnings, the

Conquest, the Great Charter, the Hundred Years' War, the Reformation, the Civil Wars and the Revolution, the Emancipation of the American Colonies from the Monarchy. If this course were framed and filled in with a true social intelligence—men would find that they had at the end of it a fair idea—an idea that might be of great value, and at any rate an idea much to be preferred to that blank ignorance which is in so many cases practically the only alternative—of the large issues of our past, of the antagonistic principles that strove with one another for mastery, of the chief material forces and moral currents of successive ages, and above all of those great men and our fathers that begat us—the Pymms, the Hampdens, the Cromwells, the Chathams—yes, and shall we not say the Washingtons—to whose sagacity, bravery, and unquenchable ardour for justice and order and equal laws all our English-speaking peoples owe a debt that can never be paid.

Another point is worth thinking of, besides the reduction of history for your purposes to a comprehensive body of rightly grouped generalities. Dr. Arnold says somewhere that he wishes the public might have a history of our present state of society *traced backwards*. It is the present that really interests us; it is the present that we seek to understand and to explain. I do not in the least want to know what happened in the past, except as it enables me to see my way more clearly through what is happening to-day. I want to know what men thought and did in the thirteenth century, not out of any dilettante or idle antiquarian's curiosity, but because the thirteenth century is at the root of what men think and do in the nineteenth. Well then, it cannot be a bad educational rule to start from what is most interesting, and to work from that outwards and backwards. By beginning with the present we see more clearly what are the two things best worth attending to in history—not party intrigues nor battles nor dynastic affairs, nor even many acts of parliament, but the great movements of the economic forces of a society on the one hand, and on the other the forms of religious opinion and ecclesiastical organisation. All the rest are important, but their importance is subsidiary.

Allow me to make one more remark on this subject. If a dozen or a score of wise lectures would suffice for a general picture of the various phases through which our own society has passed, there ought to be added to the course of popular instruction as many lectures more, which should trace the

history, not of England, but of the world. And the history of the world ought to go before the history of England. This is no paradox, but the deliberate opinion of many of those who have thought most deeply about the far-reaching chain of human progress. When I was on a visit to the United States some years ago—things may have improved since then—I could not help noticing that the history classes in their common schools all began their work with the year 1776, when the American colonies formed themselves into an independent confederacy. The teaching assumed that the creation of the universe occurred about that date. What could be more absurd, more narrow and narrowing, more mischievously misleading as to the whole purport and significance of history? As if the laws, the representative institutions, the religious uses, the scientific methods, the moral ideas, which give to an American citizen his character and mental habits and social surroundings, had not all their roots in the deeds and thoughts of wise and brave men, who lived in centuries which are of course just as much the inheritance of the vast continent of the West as they are of the little island from whence its first colonisers sailed forth.

Well, there is something nearly as absurd, if not quite, in our common plan of taking for granted that people should begin their reading of history, not in 1776, but in 1066. As if this could bring into our minds what is after all the greatest lesson of history, namely, the fact of its oneness; of the interdependence of all the elements that have in the course of long ages made the European of to-day what we see him to be. It is no doubt necessary for clear and definite comprehension to isolate your phenomenon, and to follow the stream of our own history separately. But that cannot be enough. We must also see that this stream is the effluent of a far broader and mightier flood—whose springs and sources and great tributaries lay higher up in the history of mankind.

'We are learning,' says Mr. Freeman, whose little book on the *Unity of History* I cannot be wrong in warmly recommending even to the busiest among you, 'that European history, from its first glimmerings to our own day, is one unbroken drama, no part of which can be rightly understood without reference to the other parts which come before and after it. We are learning that of this great drama Rome is the centre, the point to which all roads lead and from which all roads lead no less. The world of independent Greece stands on one side of it; the world of modern Europe stands on

another. But the history alike of the great centre itself, and of its satellites on either side, can never be fully grasped except from a point of view wide enough to take in the whole group, and to mark the relations of each of its members to the centre and to one another.'

Now the counsel which our learned historian thus urges upon the scholar and the leisured student equally represents the point of view which is proper for the more numerous classes of whom we are thinking to-night. The scale will have to be reduced; all save the very broadest aspects of things will have to be left out; none save the highest ranges and the streams of most copious volume will find a place in that map. Small as is the scale and many as are its omissions, yet if a man has intelligently followed the very shortest course of universal history, it will be the fault of his teacher if he has not acquired an impressive conception, which will never be effaced, of the destinies of man upon the earth; of the mighty confluence of forces working on from age to age, which have their meeting in every one of us here to-night; of the order in which each state of society has followed its foregoer, according to great and changeless laws 'embracing all things and all times;' of the thousand faithful hands that have one after another, each in their several degrees, orders, and capacities, trimmed the silver lamp of knowledge and kept its sacred flame bright from generation to generation and age to age, now in one land and now in another, from its early spark among far-off dim Chaldeans down to Goethe and Faraday and Darwin and all the other good workers of our own day.

The shortest course of universal history will let him see how he owes to the Greek civilisation, on the shores of the Mediterranean two thousand years back, a debt extending from the architectural forms, of this very Town Hall to some of the most systematic operations of his own mind; will let him see the forum of Rome, its roads and its gates—

What conflux issuing forth or entering in,
Prætors, Proconsuls to their provinces
Hasting or on return, in robes of state—

all busily welding an empire together in a marvellous framework of citizenship, manners, and laws, that laid assured foundations for a still higher civilisation that was to come after. He will learn how when the

Roman Empire declined, then at Damascus and Bagdad and Seville the Mahometan conquerors took up the torch of science and learning, and handed it on to western Europe when the new generations were ready. He will learn how in the meantime, during ages which we both wrongly and ungratefully call dark, from Rome again, that other great organisation, the mediæval Church, had arisen, which amid many imperfections and some crimes did a work that no glory of physical science can equal, and no instrument of physical science can compass, in purifying men's appetites, in setting discipline and direction on their lives, and in offering to humanity new types of moral obligation and fairer ideals of saintly perfection, whose light still shines like a star to guide our own poor voyages. It is only by this contemplation of the life of our race as a whole that men see the beginnings and the ends of things; learn not to be near-sighted in history, but to look before and after; see their own part and lot in the rising up and going down of empires and faiths since first recorded time began; and what I am contending for is that even if you can take your young men and women no farther than the mere vestibule of this ancient and ever venerable Temple of many marvels, you will have opened to them the way to a kind of knowledge that not only enlightens the understanding, but enriches the character—which is a higher thing than mere intellect—and makes it constantly alive with the spirit of beneficence.

I know it is said that such a view of collective history is true, but that you will never get plain people to respond to it; it is a thing for intellectual dilettanti and moralising virtuosi. Well, we do not know, because we have never yet honestly tried, what the commonest people will or will not respond to. When Sir Richard Wallace's pictures were being exhibited at Bethnal Green, after people had said that the workers had no souls for art and would not appreciate its treasures, a story is told of a female in very poor clothes gazing intently at a picture of the Infant Jesus in the arms of his Mother, and then exclaiming, *'Who would not try to be a good woman, who had such a child as that?'* We have never yet, I say, tried the height and pitch to which our people are capable of rising.

I have thought it well to take this opportunity of saying a word for history, because I cannot help thinking that one of the most narrow, and what will eventually be one of the most impoverishing, characteristics of our day is the excessive supremacy claimed for physical science. This is partly due, no

doubt, to a most wholesome reaction against the excessive supremacy that has hitherto been claimed for literature, and held by literature, in our schools and universities. At the same time, it is well to remember that the historic sciences are making strides not unworthy of being compared with those of the physical sciences, and not only is there room for both, but any system is radically wrong which excludes or depresses either to the advantage of the other.[2]

And now there is another idea which I should like to throw out, if you will not think it too tedious and too special. It is an old saying that, after all, the great end and aim of the British Constitution is to get twelve honest men into a box. That is really a very sensible way of putting the theory, that the first end of government is to give security to life and property, and to make people keep their contracts. But with this view it is not only important that you should get twelve honest men into a box: the twelve honest men must have in their heads some notions as to what constitutes Evidence. Now it is surely a striking thing that while we are so careful to teach physical science and literature; while men want to be endowed in order to have leisure to explore our spinal cords, and to observe the locomotor system of Medusæ—and I have no objection against those who urge on all these studies—yet there is no systematic teaching, very often no teaching at all, in the principles of Evidence and Reasoning, even for the bulk of those who would be very much offended if we were to say that they are not educated. Of course I use the term evidence in a wider sense than the testimony in crimes and contracts, and the other business of courts of law. Questions of evidence are rising at every hour of the day. As Bentham says, it is a question of evidence with the cook whether the joint of meat is roasted enough. It has been excellently said that the principal and most characteristic difference between one human intellect and another consists in their ability to judge correctly of evidence. Most of us, Mr. Mill says, are very unsafe hands at estimating evidence, if appeal cannot be made to actual eyesight. Indeed, if we think of some of the tales that have been lately diverting the British Association, we might perhaps go farther, and describe many of us as very bad hands at estimating evidence, even where appeal can be made to actual eyesight. Eyesight, in fact, is the least part of the matter. The senses are as often the tools as the guides of reason. One of the longest chapters in the history of vulgar error would contain the cases in

which the eyes have only seen what old prepossessions inspired them to see, and were blind to all that would have been fatal to the prepossessions. 'It is beyond all question or dispute,' says Voltaire, 'that magic words and ceremonies are quite capable of most effectually destroying a whole flock of sheep, if the words be accompanied by a sufficient quantity of arsenic.' Sorcery has no doubt been exploded—at least we assume that it has—but the temper that made men attribute all the efficacy to the magic words, and entirely overlook the arsenic, still prevails in a great host of moral and political affairs, into which it is not convenient to enter here. The stability of a government, for instance, is constantly set down to some ornamental part of it, when in fact the ornamental part has no more to do with stability than the incantations of the soothsayer.

You have heard, again, that for many generations the people of the Isle of St. Kilda believed that the arrival of a ship in the harbour inflicted on the islanders epidemic colds in the head, and many ingenious reasons were from time to time devised by clever men why the ship should cause colds among the population. At last it occurred to somebody that the ship might not be the cause of the colds, but that both might be the common effects of some other cause, and it was then remembered that a ship could only enter the harbour when there was a strong north-east wind blowing.

However faithful the observation, as soon as ever a man uses words he may begin at that moment to go wrong. 'A village apothecary,' it has been said, 'and if possible in a still greater degree, an experienced nurse, is seldom able to describe the plainest case without employing a phraseology of which every word is a theory; the simplest narrative of the most illiterate observer involves more or less of hypothesis;'—yet both by the observer himself and by most of those who listen to him, each of these conjectural assumptions is treated as respectfully as if it were an established axiom. We are supposed to deny the possibility of a circumstance, when in truth we only deny the evidence alleged for it. We allow the excellence of reasoning from certain data to captivate our belief in the truth of the data themselves, even when they are unproved and unprovable. There is no end, in short, of the ways in which men habitually go wrong in their reasoning, tacit or expressed. The greatest boon that any benefactor could confer on the human race would be to teach men—and especially women—to quantify their propositions. It

sometimes seems as if Swift were right when he said that Mankind were just as fit for flying as for thinking.

Now it is quite true that mother-wit and the common experiences of life do often furnish people with a sort of shrewd and sound judgment that carries them very creditably through the world. They come to good conclusions, though perhaps they would give bad reasons for them, if they were forced to find their reasons. But you cannot count upon mother-wit in everybody; perhaps not even in a majority. And then as for the experience of life,—there are a great many questions, and those of the deepest ultimate importance to mankind, in which the ordinary experience of life sheds no light, until it has been interrogated and interpreted by men with trained minds. 'It is far easier,' as has been said, 'to acquire facts than to judge what they prove.' What is done in our systems of training to teach people how to judge what facts prove? There is Mathematics, no doubt; anybody who has done even no more than the first book of Euclid's geometry, ought to have got into his head the notion of a demonstration, of the rigorously close connection between a conclusion and its premisses, of the necessity of being able to show how each link in the chain comes to be where it is, and that it has a right to be there. This, however, is a long way from the facts of real life, and a man might well be a great geometer, and still be a thoroughly bad reasoner in practical questions.

Again, in other of your classes, in Chemistry, in Astronomy, in Natural History, besides acquiring groups of facts, the student has a glimpse of the method by which they were discovered, of the type of inference to which the discovery conforms, so that the discovery of a new comet, the detection of a new species, the invention of a new chemical compound, each becomes a lesson of the most beautiful and impressive kind in the art of reasoning. And it would be superfluous and impertinent for me here to point out how valuable such lessons are in the way of mental discipline, apart from the fruit they bear in other ways. But here again the relation to the judgments we have to form in the moral, political, practical sphere, is too remote and too indirect. The judgments, in this region, of the most brilliant and successful explorers in physical science, seem to be exactly as liable to every kind of fallacy as those of other people. The application of scientific method and conception to society is yet in its infancy, and the *Novum Organum* or the *Principia* of moral and social phenomena will perhaps not

be wholly disclosed to any of us now alive. In any case it is clear that for the purposes of such an institution as this, if the rules of evidence and proof and all the other safeguards for making your propositions true and relevant, are to be taught at all, they must be taught not only in an elementary form, but with illustrations that shall convey their own direct reference and application to practical life. If everybody could find time to master Mill's *Logic* or so instructive and interesting a book as Professor Jevons's *Principles of Science*, a certain number at any rate of the bad mental habits of people would be cured; and for those of you here who have leisure enough, and want to find a worthy keystone of your culture, it would be hard to find a better thing to do for the next six months than to work through one or both of the books I have just named—pen in hand. The ordinary text-books of formal logic do not seem to meet the special aim which I am now trying to impress as desirable—namely, the habit of valuing, not merely speculative nor scientific truth, but the truth of practical life; a practising of the intellect in forming and expressing the opinions and judgments that form the staple of our daily discourse.

It is now accepted that the most effective way of learning a foreign language is to begin by reading books written in it, or by conversing in it—and then after a certain empirical familiarity with vocabulary and construction has been acquired, one may proceed to master the grammar. Just in the same way it would seem to be the best plan to approach the art of practical reasoning in concrete examples, in cases of actual occurrence and living interest; and then after the processes of disentangling a complex group of propositions, of dividing and shifting, of scenting a fallacy, have all become familiar, it may be worth while to find names for them all, and to set out rules for reasoning rightly, just as in the former illustration the rules of writing correctly follow a certain practice rather than precede it.

Now it has long seemed to me that the best way of teaching carefulness and precision in dealing with propositions might be found through the medium of the argumentation in the courts of justice. This is reasoning in real matter. There is a famous book well known to legal students—*Smith's Leading Cases*—which contains a selection of important decisions, and sets forth the grounds on which the courts arrived at them. I have often thought that a dozen or a score of cases might be collected from this book into a small volume, that would make such a manual as no other matter could, for

opening plain men's eyes to the logical pitfalls among which they go stumbling and crashing, when they think they are disputing like Socrates or reasoning like Newton. They would see how a proposition or an expression that looks straightforward and unmistakable, is yet on examination found to be capable of bearing several distinct interpretations and meaning several distinct things; how the same evidence may warrant different conclusions, and what kinds of evidence carry with them what degrees of validity: how certain sorts of facts can only be proved in one way, and certain other sorts of facts in some other way: how necessary it is, before you set out, to know exactly what it is you intend to show, or what it is you intend to dispute; how there may be many argumentative objections to a proposition, yet the balance be in favour of its adoption. It is from the generality of people having neglected to practise the attention on these and the like matters, that interest and prejudice find so ready an instrument of sophistry in that very art of speech which ought to be the organ of reason and truth. To bring the matter to a point, then, I submit that it might be worth while in this and all such institutions to have a class for the study of Logic, Reasoning, Evidence, and that such a class might well find its best material in selections from Leading Cases, and from Bentham's *Rationale of Judicial Evidence*, elucidated by those special sections in Mill's *Logic*, or smaller manuals such as those of Mr. Fowler, the Oxford Professor of Logic, which treat of the department of Fallacies. Perhaps Bentham's *Book of Fallacies* is too political for me to commend it to you here. But if there happens to be any one in Birmingham who is fond of meeting proposed changes by saying that they are Utopian; that they are good in theory, but bad in practice; that they are too good to be realised, and so forth, then I can promise him that he will in that book hear of something very much to his advantage.[3]

An incidental advantage—which is worth mentioning—of making legal instances the medium of instruction in practical logic, would be that people would—not learn law, of course, in the present state of our system, but they would have their attention called in a direct and business-like way to the lawyer's point of view, and those features of procedure in which every man and woman in the land has so immediate an interest. Perhaps if people interested themselves more seriously than is implied by reading famous cases in the newspapers, we should get rid, for one thing, of the rule which makes the accused person in a criminal case incompetent to testify; and, for

another, of that infamous license of cross-examination to credit, which is not only barbarous to those who have to submit to it, but leads to constant miscarriage of justice in the case of those who, rather than submit to it, will suffer wrong.

It will be said, I daresay, that overmuch scruple about our propositions and the evidence for them will reduce men, especially the young, to the intellectual condition of the great philosopher, Marphurius, in Molière's comedy. Marphurius rebukes Sganarelle for saying he had come into the room;—'What you should say is, that it *seems* I am come into the room.' Instead of the downright affirmations and burly negations so becoming to Britons, he would bring down all our propositions to the attenuation of a possibility or a perhaps. We need not fear such an end. The exigencies of practical affairs will not allow this endless balancing. They are always driving men to the other extreme, making us like the new judge, who first heard the counsel on one side and made up his mind on the merits of the case, until the turn of the opposing counsel came, and then the new counsel filled the judge with so many doubts and perplexities, that he suddenly vowed that nothing would induce him to pay any heed to evidence again as long as he lived.

I do not doubt that I shall be blamed in what I have said about French, and about history, for encouraging a spirit of superficiality, and of contentment with worthless smatterings of things. To this I should answer that, as Archbishop Whately pointed out long ago, it is a fallacy to mistake general truths for superficial truths, or a knowledge of the leading propositions of a subject for a superficial knowledge. 'To have a general knowledge of a subject is to know only its leading truths, but to know these thoroughly, so as to have a true conception of the subject in its great features' (*Mill*). And I need not point out that instruction may be of the most general kind, and still possess that most important quality of all instruction—namely, being *methodical*.

I think popular instruction has been made much more repulsive than it need have been, and more repulsive than it ought to have been, because those

who have had the control of the movement for the last fifty years, have been too anxious to make the type of popular instruction conform to the type of academic instruction proper to learned men. The principles of instruction have been too rigorously ascetic and puritanical, and instead of making the access to knowledge as easy as possible, we have delighted in forcing every pilgrim to make his journey to the shrine of the Muses with a hair-shirt on his back and peas in his shoes. Nobody would say that Macaulay had a superficial knowledge of the things best worth knowing in ancient literature, yet we have his own confession that when he became a busy man—as you are all busy—then he read his classics, not like a collegian, but like a man of the world; if he did not know a word, he passed it over, and if a passage refused to give up its meaning at the second reading, then he let it alone. Now the aims of academic education and those of popular education are—it is obvious if you come to think of it—quite different. The end of the one is rather to increase knowledge: of the other to diffuse it, and to increase men's interest in what is already known. If, therefore, I am for making certain kinds of instruction as general as they can possibly be made in these local centres, I should give to the old seats of learning a very special function indeed.

It would be absurd to attempt to discuss academic organisation here, at this hour. I only want to ask you as politicians whose representatives in parliament will ultimately settle the matter—to reflect whether the money now consumed in idle fellowships might not be more profitably employed in endowing inquirers. The favourite argument of those who support prize fellowships is that they are the only means by which a child of the working-class can raise himself to the highest positions in the land. My answer to this would be that, in the first place, it is of questionable expediency to invite the cleverest members of any class to leave it—instead of making their abilities available in it, and so raising the whole class along with, and by means of, their own rise. Second, these prize fellowships will continue, and must continue, to be carried off by those who can afford time and money to educate their sons for the competition. Third, I doubt the expediency—and the history of Oxford within the last twenty-five years strikingly confirms this doubt—of giving to a young man of any class what is practically a premium on indolence, and the removal of a motive to self-reliant and energetic spirit of enterprise. The best thing that I can think of as

happening to a young man is this: that he should have been educated at a day-school in his own town; that he should have opportunities of following also the higher education in his own town; and that at the earliest convenient time he should be taught to earn his own living.

The Universities might then be left to their proper business of study. Knowledge for its own sake is clearly an object which only a very small portion of society can be spared to pursue; only a very few men in a generation have that devouring passion for knowing, which is the true inspirer of fruitful study and exploration. Even if the passion were more common than it is, the world could not afford on any very large scale that men should indulge in it: the great business of the world has to be carried on. One of the greatest of all hindrances to making things better is the habit of taking for granted that plans or ideas, simply because they are different and approach the matter from different sides, are therefore the rivals and enemies, instead of being the friends and complements of one another. But a great and wealthy society like ours ought very well to be able to nourish one or two great seats for the augmentation of true learning, and at the same time make sure that young men—and again I say, especially young women—should have good education of the higher kind within reach of their own hearths.

It is not necessary for me here, I believe, to dwell upon any of the great commonplaces which the follower of knowledge does well to keep always before his eyes, and which represent the wisdom of many generations of studious experience. You may have often heard from others, or may have found out, how good it is to have on your shelves, however scantily furnished they may be, three or four of those books to which it is well to give ten minutes every morning, before going down into the battle and choking dust of the day. Men will name these books for themselves. One will choose the Bible, another Goethe, one the *Imitation of Christ*, another Wordsworth. Perhaps it matters little what it be, so long as your writer has cheerful seriousness, elevation, calm, and, above all, a sense of size and strength, which shall open out the day before you and bestow gifts of fortitude and mastery.

Then, to turn to the intellectual side. You know as well as I or any one can tell you, that knowledge is worth little until you have made it so perfectly your own, as to be capable of reproducing it in precise and definite form. Goethe said that in the end we only retain of our studies, after all, what we practically employ of them. And it is at least well that in our serious studies we should have the possibility of practically turning them to a definite destination clearly before our eyes. Nobody can be sure that he has got clear ideas on a subject, unless he has tried to put them down on a piece of paper in independent words of his own. It is an excellent plan, too, when you have read a good book, to sit down and write a short abstract of what you can remember of it. It is a still better plan, if you can make up your minds to a slight extra labour, to do what Lord Strafford, and Gibbon, and Daniel Webster did. After glancing over the title, subject, or design of a book, these eminent men would take a pen and write roughly what questions they expected to find answered in it, what difficulties solved, what kind of information imparted. Such practices keep us from reading with the eye only, gliding vaguely over the page; and they help us to *place* our new acquisitions in relation with what we knew before. It is almost always worth while to read a thing twice over, to make sure that nothing has been missed or dropped on the way, or wrongly conceived or interpreted. And if the subject be serious, it is often well to let an interval elapse. Ideas, relations, statements of fact, are not to be taken by storm. We have to steep them in the mind, in the hope of thus extracting their inmost essence and significance. If one lets an interval pass, and then returns, it is surprising how clear and ripe that has become, which, when we left it, seemed crude, obscure, full of perplexity.

All this takes trouble, no doubt, but then it will not do to deal with ideas that we find in books or elsewhere as a certain bird does with its eggs—leave them in the sand for the sun to hatch and chance to rear. People who follow this plan possess nothing better than ideas half-hatched, and convictions reared by accident. They are like a man who should pace up and down the world in the delusion that he is clad in sumptuous robes of purple and velvet, when in truth he is only half-covered by the rags and tatters of other people's cast-off clothes.

Apart from such mechanical devices as these I have mentioned, there are habits and customary attitudes of mind which a conscientious reader will

practise, if he desires to get out of a book still greater benefits than the writer of it may have designed or thought of. For example, he should never be content with mere aggressive and negatory criticism of the page before him. The page may be open to such criticism, and in that case it is natural to indulge in it; but the reader will often find an unexpected profit by asking himself—What does this error teach me? How comes that fallacy to be here? How came the writer to fall into this defect of taste? To ask such questions gives a reader a far healthier tone of mind in the long run, more seriousness, more depth, more moderation of judgment, more insight into other men's ways of thinking as well as into his own, than any amount of impatient condemnation and hasty denial, even when both condemnation and denial may be in their place.

Again, let us not be too ready to detect an inconsistency in our author, but rather let us teach ourselves to distinguish between inconsistency and having two sides to an opinion. 'Before I admit that two and two are four,' some one said, 'I must first know to what use you are going to put the proposition.' That is to say, even the plainest proposition needs to be stated with a view to the drift of the discussion in hand, or with a view to some special part of the discussion. When the turn of some other part of the matter comes, it will be convenient and often necessary to bring out into full light another side of your opinion, not contradictory, but complementary, and the great distinction of a candid disputant or of a reader of good faith, is his willingness to take pains to see the points of reconciliation among different aspects and different expressions of what is substantially the same judgment.

Then, again, nobody here needs to be reminded that the great successes of the world have been affairs of a second, a third, nay, a fiftieth trial. The history of literature, of science, of art, of industrial achievements, all testify to the truth that success is only the last term of what looked like a series of failures. What is true of the great achievements of history, is true also of the little achievements of the observant cultivator of his own understanding. If a man is despondent about his work, the best remedy that I can prescribe to him is to turn to a good biography; there he will find that other men before him have known the dreary reaction that follows long-sustained effort, and he will find that one of the differences between the first-rate man and the fifth-rate lies in the rigour with which the first-rate man recovers from this

reaction, and crushes it down, and again flings himself once more upon the breach. I remember the wisest and most virtuous man I have ever known, or am ever likely to know—Mr. Mill—once saying to me that whenever he had written anything, he always felt profoundly dissatisfied with it, and it was only by reflecting that he had felt the same about other pieces of which the world had thought well, that he could bring himself to send the new production to the printer. The heroism of the scholar and the truth-seeker is not less admirable than the heroism of the man-at-arms.

Finally, you none of you need to be reminded of the most central and important of all the commonplaces of the student—that the stuff of which life is made is Time; that it is better, as Goethe said, to do the most trifling thing in the world than to think half an hour a trifling thing. Nobody means by this that we are to have no pleasures. Where time is lost and wasted is where many people lose and waste their money—in things that are neither pleasure nor business—in those random and officious sociabilities, which neither refresh nor instruct nor invigorate, but only fret and benumb and wear all edge off the mind. All these things, however, you have all of you often thought about; yet, alas, we are so ready to forget, both in these matters and in other and weightier, how irrevocable are our mistakes.

The moving Finger writes, and having writ,
Moves on; nor all your piety nor wit
Can lure it back to cancel half a line,
Nor all your tears wipe out a word of it.

And now I think I cannot ask you to listen any longer. I will only add that these ceremonial anniversaries, when they are over, sometimes slightly tend to depress us, unless we are on our guard. When the prizes of the year are all distributed, and the address is at an end, we perhaps ask ourselves, Well, and what then? It is not to be denied that the expectations of the first fervent promoters of popular instruction by such Institutes as this—of men like Lord Brougham and others, a generation ago—were not fulfilled. The principal reason was that the elementary instruction of the country was not then sufficiently advanced to supply a population ready to take advantage of education in the higher subjects. Well, we are in a fair way for removing

that obstacle. It is true that the old world moves tardily on its arduous way, but even if the results of all our efforts in the cause of education were smaller than they are, there are still two considerations that ought to weigh with us and encourage us.

For one thing, you never know what child in rags and pitiful squalor that meets you in the street, may have in him the germ of gifts that might add new treasures to the storehouse of beautiful things or noble acts. In that great storm of terror which swept over France in 1793, a certain man who was every hour expecting to be led off to the guillotine, uttered this memorable sentiment. 'Even at this incomprehensible moment'—he said—'when morality, enlightenment, love of country, all of them only make death at the prison-door or on the scaffold more certain—yes, on the fatal tumbril itself, with nothing free but my voice, I could still cry *Take care*, to a child that should come too near the wheel; perhaps I may save his life, perhaps he may one day save his country.' This is a generous and inspiring thought—one to which the roughest-handed man or woman in Birmingham may respond as honestly and heartily as the philosopher who wrote it. It ought to shame the listlessness with which so many of us see the great phantasmagoria of life pass before us.

There is another thought to encourage us, still more direct, and still more positive. The boisterous old notion of hero-worship, which has been preached by so eloquent a voice in our age, is after all now seen to be a half-truth, and to contain the less edifying and the less profitable half of the truth. The world will never be able to spare its hero, and the man with the rare and inexplicable gift of genius will always be as commanding a figure as he has ever been. What we see every day with increasing clearness is that not only the wellbeing of the many, but the chances of exceptional genius, moral or intellectual, in the gifted few, are highest in a society where the *average* interest, curiosity, capacity, are all highest. The moral of this for you and for me is plain. We cannot, like Beethoven or Handel, lift the soul by the magic of divine melody into the seventh heaven of ineffable vision and hope incommensurable; we cannot, like Newton, weigh the far-off stars in a balance, and measure the heavings of the eternal flood; we cannot, like Voltaire, scorch up what is cruel and false by a word as a flame, nor, like Milton or Burke, awaken men's hearts with the note of an organ-trumpet; we cannot, like the great saints of the churches and the great sages of the

schools, add to those acquisitions of spiritual beauty and intellectual mastery which have, one by one, and little by little, raised man from being no higher than the brute to be only a little lower than the angels. But what we can do—the humblest of us in this great hall—is by diligently using our own minds and diligently seeking to extend our own opportunities to others, to help to swell that common tide, on the force and the set of whose currents depends the prosperous voyaging of humanity. When our names are blotted out, and our place knows us no more, the energy of each social service will remain, and so too, let us not forget, will each social disservice remain, like the unending stream of one of nature's forces. The thought that this is so may well lighten the poor perplexities of our daily life, and even soothe the pang of its calamities; it lifts us from our feet as on wings, opening a larger meaning to our private toil and a higher purpose to our public endeavour; it makes the morning as we awake to it welcome, and the evening like a soft garment as it wraps us about; it nerves our arm with boldness against oppression and injustice, and strengthens our voice with deeper accents against falsehood, while we are yet in the full noon of our days—yes, and perhaps it will shed some ray of consolation, when our eyes are growing dim to it all, and we go down into the Valley of the Dark Shadow.

Footnotes:

[1] Sir Henry Cole, C.B., writes to the *Times* (Oct. 13) on this suggestion as follows:—'In justice to the Lords President of the Council on Education, I hope you will allow me the opportunity of stating that from 1855 the Science and Art Department has done its very utmost to induce schools of art to receive deposits of works of art for study and popular examination, and to circulate its choicest objects useful to manufacturing industry. In corroboration of this assertion, please to turn to p. 435 of the twenty-second Report of the Department, just issued. You will there find that upwards of 26,907 objects of art, besides 23,911 paintings and drawings, have been circulated since 1855, and in some cases have been left for several months for exhibition in the localities. They have been seen by more than 6,000,000

of visitors, besides having been copied by students, etc., and the localities have taken the great sum of £116,182 for showing them.

'The Department besides has tried every efficient means to induce other public institutions, which are absolutely choked with superfluous specimens, to concur in a general principle of circulating the nation's works of art, but without success.

'The chief of our national storehouses of works of art actually repudiates the idea that its objects are collected for purposes of education, and declares that they are only 'things rare and curious,' the very reverse of what common sense says they are.

'Further, the Department, to tempt Schools of Art to acquire objects permanently for art museums attached to them, offered a grant in aid of 50 per cent of the cost price of the objects.'

[2] A very eminent physicist writes to me on this passage: 'I cannot help smiling when I think of the place of physical science in the endowed schools,' etc. My reference was to the great prevalence of such assertions as that human progress depends upon increase of our knowledge of the conditions of material phenomena (Dr. Draper, for instance, lays this down as a fundamental axiom of history): as if moral advance, the progressive elevation of types of character and ethical ideals were not at least an equally important cause of improvement in civilisation. The type of Saint Vincent de Paul is plainly as indispensable to progress as the type of Newton.

[3] This suggestion has fortunately found favour in a quarter where shrewd and critical common sense is never wanting. The *Economist* (Oct. 14) writes:—'Such a text-book commented on to a class by a man trained to estimate the value of evidence, would form a most valuable study, and not, we should imagine, at all less fascinating than valuable. Of course the class suggested would not be a class in English law, but in the principles on which evidence should be estimated, and the special errors to which, in common life, average minds are most liable. We regard this suggestion as a

most useful one, and as one which would not only greatly contribute to the educational worth of an institute for adults, but also to its popularity.'

Transcriber's Note:

Additional spacing after poetic quote on page 33 is intentional to indicate both the end of the quote and the beginning of a new paragraph as is in the original text.

*** END OF THE PROJECT GUTENBERG EBOOK CRITICAL
MISCELLANIES (VOL. 3 OF 3), ESSAY 1: ON POPULAR CULTURE

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.